

Present
Mr. Justice Sheikh Abdul Awal
Criminal Appeal No. 708 of 2015

Md. Saiful Islam (Putu)
.....Convict-appellant.

-Versus-
The State and another.
.....Respondents.

Ms. Joya Bhattacharjee, Advocate
.....For the appellant.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G
.... For the Sate.

Heard on 14.01.2024, 31.01.2024 and
Judgment on 04.02.2024

Sheikh Abdul Awal, J:

This Appeal at the instance of convict appellant, Md. Saiful Islam (Putu) is directed against the judgment and order of conviction and sentence dated 31.10.2013 passed by the learned Sessions Judge, Satkhira in Sessions Case No. 113 of 2012 arising out of C.R. Case No. 487 of 2011 convicting the appellant under section 138 of the Negotiable Instrument Act, 1881 and sentencing him thereunder to suffer imprisonment for a period of 1 (one) month and to pay a fine of Tk. 51,000/-

(fifty one thousand) in default to suffer imprisonment of 7 (seven) days more.

At the time of pronouncement of judgment Ms. Joya Bhattacharjee, the learned Advocate appearing for the accused-appellant at the very outset apologizes for her unintentional mistake and submits that due to mistake she could not add the complainant, Md. Rezaul Karim as party in this criminal appeal and thus, she may be allowed to do so. The learned Advocate next submits that the convict-appellant at the time of preferring this appeal has deposited ½ portion of the cheque's amount in trial Court below and thereafter, informing the complainant Respondent No.2, the convict-appellant made a pay-order amounting to Taka 17,000/- (total cheque's amount) in favour of the complainant, Md. Rezaul karim being No. POF 4499570 dated 30.01.2024, Sonali Bank Limited, Supreme Court Branch, Dhaka. She further submits that since the convict-appellant has already paid the entire cheque's amount through pay-order after informing the complainant-respondent No.2 and thereafter, the offence under Section 138 of the Act may be compounded and the convict-appellant is entitled to get an order of acquittal after setting-aside the order of conviction and sentence.

Ms. Shahida Khatoon, the learned Deputy Attorney General, on the other hand, in the facts and circumstances of the case could not oppose the prayer of Ms. Joya Bhattacharjee.

Perused the pay-order amounting to Taka 17,000/- dated 30.01.2024 and heard the learned Advocate for the convict-appellant and the learned Deputy Attorney General.

On scrutiny of the record, it appears that admittedly, the convict-appellant to pay the loan money issued a cheque of Tk 17,000/-(seventeen thousand) in favour of the complainant-respondent No. 2 and thereafter, the complainant respondent No. 2 presented the said cheque before the Bank for encashment, which was returned unpaid for insufficient of the fund. Thereafter, the complainant sent legal notice through his Advocate to convict-appellant asking him to pay the cheque's amount within 30 days but the convict-appellant did not pay any heed to it and thereafter, the complainant filed the case.

At the time of trial the complainant himself was examined as PW-1 who in his evidence categorically stated the complaint case.

To constitute an offence under Section 138 of the NI Act, the following elements need to be fulfilled:

1. A cheque should have been issued by the payer for the discharge of a debt or other liability.

2. The cheque should have been presented or deposited by the payee within a period of six months from the date of drawing of the cheque or within the period of validity of the cheque, whichever is earlier.

3. The payee should have issued a notice in writing to the payer within 30 days of receipt of information regarding the return of the cheque as unpaid from the bank.

4. The payer/ drawer of the cheque should have paid the cheque amount within 30 days of receipt of the said notice from the payee.

5. If the payer is failed to pay in time the cheque amount, the payee should have filed a complaint within one month.

On an overall consideration of the facts, circumstances and the materials on record, it can be easily suggested that all the above quoted key elements are exist in the present case.

On an analyses of impugned judgment and order of conviction and sentence dated 31.10.2013 passed by the learned Sessions Judge, Satkhira in Sessions Case No. 113 of 2012, I find no flaw in the reasonings of the trial Court or any ground to assail the same inasmuch as all the key elements of Section 138 of Negotiable Instrument Act are exist in the case.

However, it appears that the convict-appellant at the time of preferring this appeal has deposited ½ portion of the cheque's amount in trial Court below and thereafter, in informing the complainant Respondent No.2, the convict-appellant made a pay-order amounting to Taka 17,000/- (total cheque's amount) in favour of the complainant, Md. Rezaul Karim, in this way the convict-appellant having been already deposited more than cheque's amount in favour of the complainant.

In the Supreme Court of India, it has been consistently decided that the offence under Section 138 of the Negotiable Instruments Act being compoundable.

Having regard to the submission made by the learned Advocate for the convict-appellant, I am of the view that there is no reason not to accept the submission of the learned Advocate for the convict-appellant. Since N.I. Act proceeding arises out of monetary transaction and the proceeding is a quasi civil and quasi criminal in

nature, maximum sentence under the law is one year, I am of the view that the accused-appellant under Negotiable Instruments Act proceeding to make payment of cheque's amount has been deposited half of the cheque's amount in the Court and made pay-order as aforesaid and the same should be allowed by the Court at any stage of the proceeding even at the appellate or revisional stage.

Considering all the facts and circumstances of the case as revealed from the materials on record, I am of the view that the convict-appellant may be acquitted from the charge under section 138 of the Negotiable Instruments Act proceeding.

For the reasons stated above, I find substance in the prayer of the learned Advocate for the convict-appellant.

Accordingly, the appeal is allowed. The order of conviction and sentence passed by the trial Court below is set-aside and the appellant is acquitted of the charge under Section 138 of the Act. Convict appellant, Md. Saiful Islam (Putu) is discharged from his bail bond and the complainant-Respondent No.2 is permitted to withdraw half of the cheque's amount deposited in the Trial Court by the convict-appellant for the purpose of preferring this Criminal Appeal and the pay-order amounting to Taka 17,000/- being No. POF 4499570

dated 30.01.2024, Sonali Bank Limited, Supreme Court Branch, Dhaka made by the accused-appellant in favour of the complainant.

The appeal stands disposed of in the above terms.

Send down the lower Court records along with pay-order of Taka 17,000/- being No. POF 4499570 dated 30.01.2024, Sonali Bank Limited, Supreme Court Branch, Dhaka at once.